



CHAPTER xliii.

An Act to authorise the Mexborough Urban District Council to acquire the undertaking of the Mexbrough and District Water Company Limited and to make further provision in regard to the water supply of the district and for other purposes. [8th July 1914.] A.D. 1914.

WHEREAS the district of Mexborough in the west riding of the county of York (in this Act called "the district") is an urban district and is under the government of the Mexborough Urban District Council (in this Act called "the Council"):

And whereas the Mexbrough and District Water Company Limited (in this Act referred to as "the company") were incorporated under the Joint Stock Companies Acts with a nominal capital of ten thousand pounds divided into one thousand shares of ten pounds each:

And whereas by the Mexbrough and District Water Order 1879 the capital of the company was limited to ten thousand pounds with power to borrow not exceeding two thousand five hundred pounds and powers were conferred upon the company to supply water within the township of Mexborough:

And whereas it is expedient that the water supply of the district should be under the control of the Council and that the undertaking of the company should be transferred to and vested in the Council in manner provided by this Act and that further provision should be made in regard to the supply of water within the limits of this Act:

And whereas it is expedient that the Council should be authorised to borrow money for the purchase of the undertaking of the company and for the other purposes of this Act:

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A.D. 1914. — And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the *Mexborough Urban District Council Act 1914*.

Incorporation of Acts. 2. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):—

(1) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

(2) The Waterworks Clauses Acts 1847 and 1863 except—

(A) The words “with the consent in writing of
“ the owner or reputed owner of any such house
“ or of the agent of such owner” in section 44
of the Waterworks Clauses Act 1847;

(B) Sections 75 to 82 of the Waterworks Clauses Act 1847 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts.

Interpretation. 3. The several words and expressions to which by the Acts wholly or partially incorporated with this Act or by the Public Health Acts meanings are assigned shall in this Act have the same respective meanings unless there is something in the subject or context repugnant to such construction. Provided that in the Acts wholly or partially incorporated with this Act for the purposes of this Act—

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“The undertakers” or “the company” means the Council: A.D. 1914.
And in this Act unless the context otherwise requires—

“The district” means the urban district of Mexborough;

“The Council” means the urban district council of the district;

“The district fund” and “the general district rate” mean respectively the district fund and the general district rate of the district;

“The date of transfer” means the date of actual completion of the purchase by the Council of the undertaking of the company;

“The undertaking of the company” includes all the lands buildings waterworks mains pipes machinery and plant and all other the real and personal property assets and effects of whatever nature and all the rights powers and privileges vested in or belonging to or had or enjoyed by the company at the date of transfer except—

(A) The cash balances other than consumers' deposits in the company's hands or in those of their bankers or agents on the date of transfer and all sums standing to the credit of their reserve fund and all undivided profits and all stock-in-trade and other stores of any description of the company which stock-in-trade and stores shall be purchased by the Council by valuation; and

(B) All rents and profits of and all book and other debts due to the company on credit or revenue account and all rates accrued due on the date of transfer; and

(C) The minute books and such of the books of the company as relate exclusively to the shareholders in the members and constitution of the company;

“The clerk” and “the surveyor” respectively mean the clerk and the surveyor appointed by the Council in pursuance of the powers of any public Act;

“The Order of 1879” means the Mexbrough and District Water Order 1879;

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“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government Department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Revenues of the Council” includes revenues of the Council from time to time arising from any land undertakings or other property for the time being of the Council and rates or contributions leviable by or on the order or precept of the Council;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council.

PART II.

TRANSFER OF UNDERTAKING.

Company to
sell their
undertaking
to Council.

4.—(1) The company shall sell to the Council and the Council shall purchase the undertaking of the company for such price or consideration being a sum in gross and on such terms and conditions as may be agreed upon between the company and the Council or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression “the promoters of the

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undertaking" shall mean the Council and the expression "lands" shall mean the undertaking of the company. A.D. 1914.

(2) In addition to the sums to be paid by the Council to the company under the foregoing provisions of this section the Council shall on or before the date of transfer pay to the company (A) the costs and expenses incurred by the company preliminary to and of and incidental to preparing and promoting the Bill being promoted in the present session of Parliament by the company and if the same be passed of the passing of the same into law and of obtaining clauses for their protection and amendments in the Bill for this Act (B) the costs and expenses of the company of and incidental to the winding-up of the company not exceeding fifty guineas.

The said first mentioned costs and expenses shall be taxed either on the application of the company or the Council by the taxing officer of the House of Lords or of the House of Commons and the said second mentioned costs and expenses shall be taxed on the application of either the company or the Council by a taxing master of the Supreme Court acting as a taxing master in proceedings in such court.

(3) The Council shall pay the purchase money to the company on such day as may be agreed between the Council and the company or failing agreement on the thirty-first day of March the thirtieth day of June the thirtieth day of September or the thirty-first day of December which shall first happen after the expiration of two months from the determination by agreement in writing or by the award of the arbitrator of the amount of the purchase money and upon such payment the undertaking of the company shall by virtue of this Act become and shall thenceforth be transferred to and vested in the Council free from all charges debts and liabilities upon or affecting the same.

5. The production of a King's printers' copy of this Act duly stamped together with a receipt for the purchase money purporting to be signed by three directors of the company or by the cashier of the Bank of England shall (unless it be proved that the purchase money has not been paid) be conclusive evidence in all courts and proceedings of the transfer. Proof of payment of purchase money.

6. The receipt in writing of three directors of the company for any money to be paid to the company by the Council shall Receipt for purchase money.

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A.D. 1914. effectually discharge the Council from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof. Provided that if from any cause the Council are unable to obtain such receipt they may pay the money into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Council by the cashier of the said bank for the money which shall have the same effect as the receipt of three directors of the company.

Council to
purchase
movable
goods of
company.

7. The Council shall purchase all stock-in-trade and other stores belonging to the company as they stand at the date of transfer of the undertaking of the company to the Council at such price failing agreement as may be settled by a valuer to be agreed upon between the parties or be nominated by the President of the Institute of Surveyors upon the application of either party and the decision of such valuer as to what is comprised in such stock-in-trade and stores shall be final and conclusive.

Compensa-
tion to
officers.

8. The Council shall pay compensation to any officer (other than directors) in the regular employment of the company who shall not be retained by the Council in the same or similar office or employment and at the salary and on the terms and conditions in at and on which he was employed by the company at the date of transfer in respect of any abolition or loss of office or loss or diminution of salary or income or emoluments by reason of the transfer of the undertaking of the company to the Council the amount of such compensation in default of agreement to be determined by arbitration and no officer who has been in the employment of the company for ten years or upwards shall lose his right to compensation as aforesaid by reason of his declining to enter into or continue in the service of the Council.

Company to
pay out-
goings and
be entitled
to receipts
until trans-
fer.

9. The company shall bear and pay all outgoings of every kind and shall be entitled to all receipts from their undertaking up to the date of transfer and as from that date all outgoings shall be borne and paid by the Council. Provided that nothing in this Act contained shall entitle the company to retain for their own benefit so much of any water rates or

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rents or other payments paid or payable in advance as shall be attributable to any period after the date of transfer but such rates rents or other payments shall be apportioned and so much thereof as is attributable to any period after the date of transfer shall be paid over by the company to the Council Provided also that the Council shall repay to the company such proportion of any payment made in advance by the company as may be attributable to any period after the date of transfer.

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10.—(1) Until the date of transfer the undertaking of the company shall be maintained and carried on by the company as heretofore in the ordinary course of business with all due care but the company shall not without the previous consent of the Council under the hand of their clerk make or enter into any contract agreement or obligation except such as may be necessary for completing and carrying into effect obligations existing at the said date and also such as shall be in the ordinary course of the maintenance of the works the proper conduct of the undertaking and the due performance of their statutory obligations but such consent shall not be unreasonably withheld and in the case of difference between the Council and the company as to whether such consent is unreasonably withheld or as to any other matters arising under this subsection such difference shall be determined by arbitration.

Maintenance
of under-
taking by
company till
transfer.

(2) Any expenditure incurred by the company on capital account under this section shall upon the transfer be repaid by the Council to the company.

11. All mortgages debts and liabilities secured upon or affecting the undertaking or due from or payable by the company which at the date of transfer shall remain undischarged unpaid or unsatisfied shall be discharged paid or satisfied by the company and the company shall indemnify the Council against the same and if at the date of transfer any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of the company the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer or of anything in this Act but the same may be continued prosecuted and enforced by against or in favour of the company as and when it might have been continued prosecuted and enforced by against or in favour of them if this Act had not passed.

Mortgages
and other
liabilities to
be defrayed
by company.

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Contracts of
company to
be binding
on Council.

12. Subject to the provisions of this Act all agreements contracts conveyances deeds and other instruments affecting the company and in force at the time of the transfer shall after the transfer be as binding and of as full force and effect against or in favour of the Council and may be enforced as fully and effectually as if instead of the company the Council had been a party thereto.

Books &c.
to remain
evidence.

13. All books and documents which if the transfer had not been made would have been evidence in respect of any matter for or against the company shall after the transfer be admitted in evidence in respect of the same or the like matter for or against the Council.

Right of
access of
company to
books &c.

14. After the date of transfer the company shall be entitled to retain the directors' minute books and the register of shareholders and other books relating solely to the holders of shares in and to the constitution of the company and until the company shall be finally wound up and dissolved the company shall have access at all reasonable times to the other books documents and accounts relating to the transferred undertaking for the purpose of making up the accounts of the company to the date of transfer and for all other reasonable purposes in relation to the winding up of the company Upon the transfer of the undertaking the said books (other than the directors' minute books and such of the books of the company as relate exclusively to the shareholders in and the members and constitution of the company) shall be handed over to the Council.

Repeal of
Order of
1879.

15. As from the date of transfer the Mexbrough District Water Order 1879 confirmed by the Gas and Water Orders Confirmation Act 1879 shall be repealed.

PART III.

WATER SUPPLY.

Water limits.

16. The limits of this Act for the supply of water by the Council (in this Act called "the water limits") shall be the district.

Power to
maintain and
use existing
waterworks.

17. The Council may after the date of transfer maintain renew extend enlarge alter and repair the reservoirs wells tanks mains pipes and other waterworks acquired by them under this

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Act and may use the same for the purpose of taking inter- A.D. 1914.
 cepting and impounding any water that can be thereby taken
 intercepted or impounded.

18. The Council may after the date of transfer upon any Power to
 lands acquired by them construct lay down and maintain all make subsi-
 such cuts channels catchwaters tunnels adits pipes conduits diary works.
 culverts drains sluices byewashes shafts wells bores water towers
 overflows waste-water channels gauges filters filter-beds reservoirs
 tanks banks walls bridges embankments piers roads approaches
 engines pumps machinery works and appliances as may be
 necessary or convenient in connection with or subsidiary to the
 works referred to in the section of this Act whereof the
 marginal note is "Power to maintain and use existing water-
 works" or any of them but nothing in this section shall
 exonerate the Council from any action indictment or other
 proceeding for nuisance in the event of any nuisance being
 caused or permitted by them.

19. The Council may for the purposes of their waterworks Power to
 acquire by agreement either in fee simple or for any term or acquire addi-
 terms of years in addition to lands which they are otherwise tional lands
 authorised to acquire or hold under this Act any lands not by agree-
 exceeding in the whole twenty acres or any easement right ment.
 or privilege therein thereunder or thereon (not being an easement
 right or privilege of water in which persons other than the
 grantors have an interest) but the Council shall not create or
 permit a nuisance on any such lands and shall not erect any
 buildings thereon other than offices and dwellings for persons in
 their employ and such buildings and works as may be incident
 to or connected with their waterworks.

20. Persons empowered by the Lands Clauses Acts to sell Persons
 and convey or release lands may if they think fit subject to the under dis-
 provisions of those Acts and of this Act grant to the Council ability may
 any easement right or privilege (not being an easement right or grant ease-
 privilege of water in which persons other than the grantors ments &c.
 have an interest) required for the purposes of this Act in over
 or affecting any such lands and the provisions of the said Acts
 with respect to lands and rentcharges so far as the same are
 applicable in this behalf shall extend and apply to such grants
 and to such easements rights and privileges as aforesaid
 respectively.

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Power to
retain sell &c.
lands.

21. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Council may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or property or any interest therein acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or property or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Power to
purchase and
hold lands
and exercise
powers for
protection of
waters and
waterworks.

22.—(1) For the purpose of protecting any of their waters and waterworks against pollution nuisance encroachment or injury the Council may by agreement purchase take on lease and acquire any lands and may hold such lands for the purposes of their water undertaking so long as they shall deem it necessary or expedient for those purposes Provided that the Council shall not create or permit the creation or continuance of any nuisance on any lands acquired under this section nor erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with their waterworks.

(2) The Council may in and upon the lands referred to in subsection (1) of this section construct and lay down drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Council are empowered to take from being polluted and the Council may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road within the limits of the drainage area of any of the waterworks of the Council subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

Power to
agree as to
drainage of
lands.

23. The Council may make and carry into effect agreements with the owners lessees or occupiers of any lands within

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the drainage area of the reservoirs and other waterworks authorised to be acquired or provided by them under this Act with reference to the execution by the Council or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters by this Act authorised to be taken intercepted or impounded by the Council flowing to upon or from such lands directly or derivatively into such reservoirs and waterworks. A.D. 1914.

24. The Council on selling any lands acquired for or in connection with their waterworks and not required for that purpose may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit. Reservation
of water
rights on
sale of lands.

25.—(1) For the purpose of executing constructing enlarging extending repairing cleansing emptying or examining any reservoir well adit aqueduct line of pipes or other work of the Council the Council may cause the water in any such work to be discharged into any available stream watercourse or ditch. Discharge of
water into
streams.

(2) In the exercise of the powers conferred by this section the Council shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such powers the amount of compensation to be settled in case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

(3) Any water discharged by the Council in exercise of the powers conferred by this section shall be as free as may be reasonably practicable from mud or solid or offensive matter.

26. Subject to the provisions of this Act the Council shall not construct any works for taking or intercepting water from any lands acquired by them after the date of transfer unless the works are authorised by and the lands upon which the Limiting
powers of
Council to
abstract
water.

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--- Act of Parliament Provided that nothing in this section shall
be deemed to prohibit the maintaining deepening enlargement
or alteration of any existing well borehole or other works
belonging to them or acquired by them under this Act.

Pressure.

27. The water to be supplied by the Council need not be delivered at a greater height than can be supplied by gravitation from the reservoir from which the supply shall be taken nor need the water supplied by the Council be constantly laid on under pressure when pumping is required to afford the supply.

Detection of
waste.

28. Subject to the provisions of this Act and the Acts incorporated herewith the Council may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Council and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets roads lanes footways courts passages tramways gas or water pipes electric lines wires and apparatus Provided that the Council shall not interfere with any electric lines wires and apparatus belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Rates for
supply for
domestic
purposes.

29. The Council shall at the request of the owner or occupier of any dwelling house or part of a dwelling house entitled under the provisions of this Act to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at rates not exceeding the rates hereinafter specified (that is to say):—

If the rackrent or (if not let at a rackrent) the annual value of a dwelling house or of part of a dwelling house does not amount to twenty pounds per annum the rate of seven pounds and ten shillings per centum per annum upon such rackrent or annual value as the case may be and so in proportion for any shorter period:

If such rackrent or (as the case may be) annual value amounts to twenty pounds but does not amount to forty pounds per annum the rate of seven pounds per centum

per annum upon such rackrent or annual value as the case may be and so in proportion for any shorter period : A.D. 1914.

If such rackrent or (as the case may be) annual value amounts to forty pounds but does not amount to sixty pounds per annum the rate of six pounds and ten shillings per centum per annum upon such rackrent or annual value as the case may be and so in proportion for any shorter period :

If such rackrent or (as the case may be) annual value amounts to or exceeds sixty pounds per annum the rate of six pounds per centum per annum upon such rackrent or annual value as the case may be and so in proportion for any shorter period.

Nothing in this section shall entitle the Council in any case to demand for the water rate for any house or part of a house included in any division of the above scale a greater sum than they would be entitled to demand if the house or part thereof were of just sufficient rent or value to bring it within the next division of the said scale relating to premises of a higher rent or value whereon a lower rate per centum is chargeable.

Provided also that the Council shall not be required to afford a supply of water for domestic purposes to the owner or occupier of any dwelling house or part of a dwelling house for a less sum than two shillings and twopence per quarter of a year and where the rent paid by the occupier includes the charges for water the rackrent shall be deemed to be the rent after deducting such charges.

30. In addition to the foregoing charges the Council may charge in respect of every watercloset beyond the first (for which no additional charge shall be made) on any premises within the district a sum not exceeding five shillings per annum and in respect of every fixed bath capable of containing as usually filled for use not more than fifty gallons a sum not exceeding seven shillings and sixpence per annum and for every fixed bath capable of containing as usually filled for use more than fifty gallons such sum as the Council may think fit such additional sums to be paid quarterly in advance and to be recoverable in all respects with and as the water rates.

Rates for
waterclosets
and baths.

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Revision of
water rates.
- 31.** The Council may with the sanction of the Local Government Board and after local inquiry if required by such Board at any time increase the water rates leviable by them by such amount as may be considered by the Council to be necessary in order to meet the estimated expenditure of the water undertaking of the Council.
- Alteration of
basis of col-
lection of
water rates.
- 32.** From and after the expiration of five years after the date of transfer the rates to be charged by the Council for water supplied for domestic purposes shall be calculated on the basis of the rateable value of the premises supplied instead of upon the rackrent or annual value.
- Supply by
measure.
- 33.** The Council may supply water for other than domestic purposes on such terms and conditions as the Council think fit and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates. Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes.
- Supply to
houses
partly used
for trade.
- 34.** The Council shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required.
- Supply of
water by
hose pipe to
stables &c.
- 35.** When water supplied for domestic purposes is used for washing horses carriages or motor cars or for other purposes in stables or premises where horses carriages or motor cars are kept the Council may if a hose pipe or other similar apparatus is used charge such additional sum not exceeding twenty shillings per annum as they may prescribe and any sum charged under this section shall be recoverable in the same manner as water rates.
- Price of
supply by
measure.
- 36.** The price to be charged for a supply of water by measure shall not exceed one shilling per thousand gallons. Provided that the Council shall be entitled to charge for each such supply (other than a supply given under the provisions of the section of this Act the marginal note of which is "Supply to houses partly used for trade") such minimum sum not exceeding ten shillings as they may prescribe in respect of the water supplied in any quarter of a year.

37.—(1) The Council may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of the pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as “water fittings”) to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

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Byelaws for preventing waste &c. of water.

(2) Such byelaws shall apply only in the case of premises to which the Council are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Council may if they think fit after twenty-four hours’ notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Council as the water rates in respect of the premises are recoverable.

38. The Council shall not be bound to supply water by means of stand pipes and they may remove existing stand pipes and require every user thereof to take a supply of water by means of a separate pipe to be laid from the nearest water main of the Council to the house of such user.

Council may remove stand pipes.

39. Before any person connects or disconnects any meter by means of which any of the water of the Council is intended to be or has been registered he shall give not less than twenty-four hours’ notice in writing to the Council of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Council and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Notice to Council of connecting or disconnecting meters.

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Power to lay
pipes in
streets not
dedicated to
public use.

40. The Council may on the application of the owner or occupier of any premises within the water limits abutting on or being erected in any street laid out but not dedicated to public use supply those premises with water and for that purpose the Waterworks Clauses Act 1847 shall apply as if section 29 of that Act were excepted from incorporation in this Act.

Power to
sell meters.

41. The Council may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

Injuring
meters &c.

42. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Council or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Council shall (without prejudice to any other right or remedy for the protection of the Council) be liable to a fine not exceeding five pounds and the Council may in addition thereto recover the amount of any damage by them sustained. And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Council or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Council the Council may also enter upon the premises and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Council by the person so offending and may be recovered by them as water rates are recoverable. The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Council when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention

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abstraction consumption or use as the case may be has been A.D. 1914.
fraudulently knowingly and wilfully caused by the consumer
using such pipe meter instrument or fittings.

43. The Council may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans water-closets and other fittings as are required or permitted by their regulations and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the Council in providing such materials and executing such work shall be paid by the person requiring the same. Power to Council to supply materials.

44. The Council by their agents or workmen after forty-eight hours' notice in writing under the hand of the clerk or some other officer of the Council to the occupier or if there is no occupier then to the owner or lessee of any house building or land in which any pipe meter or fitting belonging to the Council is laid or fixed and through or in which the supply of water is from any cause other than the default of the Council discontinued for the space of forty-eight hours may enter such house building or land between the hours of nine in the morning and four in the afternoon or at any other time with the authority in writing of a justice for the purpose of removing and may remove every such pipe meter and fitting repairing all damage caused by such entry or removal. Power to remove meters and fittings.

45. The Council shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water. Council not bound to supply several houses by one pipe.

46. A notice to the Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing and be left at or sent by post to the office of the Council or be given by the consumer personally at the office of the Council. Notice of discontinuance.

47. The Council may enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond the water limits to any such Supply of water in bulk.

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A.D. 1914. authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon Provided that such supply shall not be given except with the consent of any company or person supplying water under parliamentary authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water for domestic purposes within the water limits.

Rates payable by owners of small houses.

48. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Council so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Register of meter to be primâ facie evidence.

49. Where water is supplied by measure the register of the meter or other instrument for measuring water shall be primâ facie evidence of the quantity of water consumed and in respect of which any water rate or rent is charged and sought to be recovered by the Council Provided that if the Council and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties any costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties.

PART IV.

FINANCIAL PROVISIONS.

Power to borrow.

50.—(1) The Council may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within the

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respective periods (each of which is in this Act referred to as “the prescribed period”) mentioned in the third column of the said table (namely):—

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1	2	3
Purpose.	Amount.	Period for Repayment.
(A) For the payment of the purchase money of the undertaking of the company and such of the costs and expenses incidental to such purchase and the transfer as may be payable by the Council.	The sum requisite.	Forty-five years from the date or dates of borrowing.
(B) For the costs of this Act - - -	The sum requisite.	Five years from the passing of this Act.

(2) The Council may also with the consent of the Local Government Board borrow such further moneys as may be necessary for any of the purposes of this Act Any moneys borrowed under this subsection shall be repaid within such period (in this Act referred to as “the prescribed period”) as may be prescribed by the Local Government Board.

(3) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Council may mortgage or charge the revenue of the water undertaking and the district fund and general district rate or either of those securities:

The provisions of this subsection shall not limit the powers conferred upon the Council by the section of this Act whereof the marginal note is “Power to use one form of mortgage for all purposes.”

51. The powers of borrowing money given by this Act shall not be restricted by any of the regulations contained in section 234 (Regulations as to exercise of borrowing powers) of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Section 234
of Public
Health Act
1875 not to
apply.

52. The Council may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others.

Mode of
raising
money.

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Provisions
of Public
Health Act
1875 as to
mortgages
to apply.

53. Subject to the provisions of the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" the following sections of the Public Health Act 1875 shall extend and apply to mortgages granted under this Act (that is to say):—

Section 236 (Form of mortgage) ;

Section 237 (Register of mortgages) ;

Section 238 (Transfer of mortgages).

Mode of pay-
ment off of
money bor-
rowed.

54. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or partly by one of those methods and partly by another or others of them and the payment of the first instalment shall be made within one year or when the money is repaid by half-yearly instalments within six months from the date of borrowing.

Protection of
lender from
necessity of
inquiry.

55. A person lending money to the Council under this Act shall not be bound to inquire as to the observance by the Council of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Council not
to regard
trusts.

56. The Council shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Council shall be a sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or encumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register.

Appoint-
ment of
receiver.

57.—(1) Any mortgagee of the Council by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than five hundred pounds in the whole.

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(2) The application for the appointment of a receiver shall be made to the High Court. A.D. 1914.

58.—(1) The Council shall have power—

Power to
re-borrow.

(A) To borrow, for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) By instalments or annual payments; or

(B) By means of a sinking fund; or

(C) Out of moneys derived from the sale of land; or

(D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

59.—(1) The clerk shall within forty-two days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to the sinking fund in respect of any of the moneys raised by the Council in pursuance

Returns to
Local
Government
Board as to
repayment
of debt.

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A.D. 1914. of any statutory borrowing power and not raised by the issue of stock and at any other time when the Local Government Board (in this section referred to as "the Board") may require such a return to be made transmit to the Board a return in such form as may be prescribed by the Board and if required by the Board verified by a statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year together with such further information (if any) as the Board shall require and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Board out of the High Court.

(2) If it appears to the Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for the sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of the sinking fund to any purposes other than those authorised the Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Board out of the High Court.

Application
of money
borrowed.

60. All moneys borrowed by the Council under the powers of this Act shall be applied only to the purposes for which

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they are authorised to be borrowed and to which capital is properly applicable. A.D. 1914.

61.—(1) Where the Council have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section. Power to use one form of mortgage for all purposes.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the common seal of the Council and may be made in the form contained in the schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Council.

(5) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the payment of interest upon the sums secured by mortgages granted under this section and interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted.

(7) There shall be kept at the office of the Council a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties

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A.D. 1914. thereto as stated in the deed Every such register shall be open to public inspection during office hours at the said office without fee or reward and the clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the schedule to this Act or to the like effect.

(9) There shall be kept at the office of the Council a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Council shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

(11) If the clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

Expenses of
execution of
Act.

62. Any expenses of the execution by the Council of this Act with respect to which no other provision is made shall be defrayed by the Council out of the district fund and general district rate.

63. The Council shall apply all moneys received by them in respect of any sales exchanges or disposition of lands or premises or any interest therein or by way of fine or premium on any lease of lands or premises made under the authority of this Act and any other moneys received by the Council on capital account under this Act in or towards paying off any moneys borrowed and for the time being owing by the Council under this Act to which such capital moneys would be properly applicable or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Council on capital account. Provided that such moneys received shall not be applicable to the payment of instalments appropriations or annual repayments or to payments into sinking fund except to such extent and upon such terms as may be approved by the Local Government Board.

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Application
of moneys
arising from
sale of lands
&c.

64. The Council shall keep accounts in respect of their water undertaking separate from all their other accounts distinguishing therein capital from revenue and shall apply all money from time to time received by them in respect of their water undertaking except borrowed money and money properly applicable on capital account as follows:—

Application
of water
revenue.

First In payment of the working and establishment expenses and cost of maintenance of the undertaking:

Secondly In payment of the interest on moneys borrowed by the Council for the purposes of the undertaking:

Thirdly In providing the requisite appropriations and instalments in respect of moneys borrowed by the Council for the purposes of the undertaking:

Fourthly In extending and improving (if the Council think fit) any works for the purposes of the undertaking:

Fifthly In providing a reserve fund (if the Council think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to two thousand pounds which fund shall be applicable to answer any deficiency at any time happening in the income of the Council from the undertaking or to meet any extraordinary claim or demand at any time arising

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against the Council in respect of the undertaking or for payment of the cost of renewing any part of the works forming part thereof and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

And the Council shall carry to the district fund so much of any balance remaining in any year of the said money received (together with the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Council not be required for carrying on the undertaking and paying the current expenses connected therewith.

Provision in
case of defi-
ciency of
water
revenue.

65. If in any year the amount of the water revenue actual or estimated shall be insufficient for the payment of the charges thereon the deficiency shall be made good by an increase of the general district rate made within one year after such deficiency has been ascertained or estimated and the Council in preparing the estimates of the amount required in their judgment to be raised by means of a general district rate for the purposes of the district shall include therein such sum (if any) as in their judgment is necessary to be provided in aid of any deficiency from time to time arising or expected to arise as aforesaid in the water revenue.

Audit of
accounts.

66. Section 58 of the Local Government Act 1894 shall apply to the accounts of the Council and their committees and officers under this Act and to the audit of such accounts.

PART V.

MISCELLANEOUS PROVISIONS.

Evidence of
appoint-
ments autho-
rity &c.

67. Where in any legal proceedings taken by or on behalf of the Council whether under this Act or under any general or local Act passed before or after this Act it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent or to prove any resolution of the Council a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the chairman of the Council or the clerk shall be *primâ facie* evidence of such

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appointment authority or resolution without further proof of the holding of any meeting or the production of any minute book or other record or document. A.D. 1914.

68. Where under this Act or under any general or local Act for the time being in force in the district the Council give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent. As to breach of conditions of consent of Council.

69. Whenever the Council or the surveyor under any enactment or byelaw for the time being in force within the district execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Council shall not as between themselves and such owner occupier or other person in the absence of negligence on the part of the Council or the surveyor or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Council in the absence of negligence shall be deemed to be part of the expenses payable by such owner or occupier or other person and shall be recoverable accordingly. In executing works for owner Council only liable for negligence.

70.—(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the district requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be a sufficient authentication. Authentication and service of notices &c.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Provisional Order or byelaw for the time being in force within the district may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any company any such notice demand order or document shall be

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A.D. 1914. delivered by post addressed to the secretary of the company at
— their registered office or at their principal office or place of
business.

Confirma-
tion of bye-
laws.

71. The provisions of the following sections of the Public Health Act 1875 (namely):—

Section 182 (Authentication and alteration of byelaws);

Section 183 (Power to impose penalties on breach of byelaws);

Section 184 (Confirmation of byelaws);

Section 185 (Byelaws to be printed &c.); and

Section 186 (Evidence of byelaws);

so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Council under the powers of this Act.

Recovery of
penalties &c.

72. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that the costs and expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
demands.

73. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken at any time in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Informations
by whom to
be laid.

74. Save as otherwise by this Act expressly provided all informations and complaints under or in respect of the breach of any of the provisions of this Act or any byelaws made thereunder may be laid by an officer of the Council authorised in that behalf or by the clerk.

Penalties to
be paid to
treasurer.

75. All penalties recovered on the prosecution of the Council or any officer of the Council on their behalf under this Act or under any byelaw thereunder shall be paid to the

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treasurer of the Council and be carried by him to the credit of the district fund or to such other fund as the Council shall direct. A.D. 1914.

76. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate. Judges &c. not to be disqualified.

77. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were re-enacted herein. Application of section 265 of Public Health Act 1875.

78. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence. Saving for indictments &c.

79.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purpose of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875. Inquiries by Local Government Board.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

80. For the protection of the Great Central Railway Company the Lancashire and Yorkshire Railway Company and the Dearne Valley Railway Company (which companies are in this section severally referred to as and included in the expression "the railway company") the following provisions shall unless otherwise agreed in writing between the Council For protection of Great Central Lancashire and Yorkshire and Dearne Valley Railway Companies.

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A.D. 1914. — and the railway company be observed and have effect (that is to say):—

The Council shall not construct any works by this Act authorised under over or across any of the railways or property of the railway company except in accordance with plans and sections previously approved by the principal engineer of the railway company and under his superintendence and the Council shall pay to the railway company the reasonable expense to which the railway company may be put in watching and lighting their railway and works during the execution of any of the works of the Council.

Crown
rights.

81. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of Act.

82. All the costs charges and expenses preliminary to and of and incidental to the preparing and applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the district fund and general district rate or out of moneys borrowed under this Act for that purpose.

The SCHEDULE referred to in the foregoing Act.

A.D. 1914.

FORM OF MORTGAGE.

By virtue of the Mexborough Urban District Council Act 1914 and of other their powers in that behalf them enabling the Mexborough Urban District Council (hereinafter referred to as "the Council" in consideration of the sum of pounds paid to the treasurer of the Council by (hereinafter referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Council in the said Act defined as the said sum so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the said sum of pounds shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of per centum per annum from the day of one thousand nine hundred and until payment of the said principal sum such interest to be paid half-yearly on the day of and the day of in each year And it is hereby agreed that the said principal sum of pounds shall be repaid at the offices of the Council in the said district (subject as hereinafter provided) on the day of one thousand nine hundred and :

Provided always and it is hereby agreed and declared that the beforementioned time for repayment may be extended to such subsequent day or days and upon any such extension the beforementioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon and mentioned in an endorsement to be made hereon under the hand of the chairman and clerk of the Council for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Council have caused their common seal to be hereunto affixed this day of one thousand nine hundred and

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THE ENDORSEMENT WITHIN REFERRED TO.

The within-named _____ consenting
the within-mentioned time for repayment of the within-mentioned
principal sum of _____
_____ is hereby extended to the
day of _____ one thousand nine hundred and
[and the interest to be paid thereon on and from the
day of _____ one thousand
nine hundred and _____ is hereby declared to be
at the rate of _____ per centum per annum].

Dated this _____ day of
one thousand nine hundred and _____ .

FORM OF TRANSFER OF MORTGAGE.

I [the within-named] _____
[of _____] in consideration
of the sum of _____ pounds paid to
me by _____ of
_____ (hereinafter
referred to as "the transferee") do hereby transfer to the transferee
[his] executors administrators and assigns [the within-written security]
[the mortgage number _____ of the revenues of the Mexborough
Urban District Council bearing date the _____ day of _____] and all
my right and interest under the same subject to the several conditions
on which I hold the same at the time of the execution hereof and I
the transferee for myself my executors administrators and assigns do
hereby agree to take the said mortgage security subject to the same
conditions.

Dated this _____ day of _____ one thousand nine hundred
and _____ .

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